

HOUSE BILL 2024

By Marsh

AN ACT to amend Tennessee Code Annotated, Title 65,
Chapter 31, Part 1, relative to underground utility
damage prevention.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 65-31-102(12)(A), is amended by deleting "digging, ditching" and substituting "digging, dredging, ditching".

SECTION 2. Tennessee Code Annotated, Section 65-31-102, is amended by adding the following as a new subdivision:

() "Digital locating" means the application of a visual indicator to digital imagery or an electronic map to indicate the location of underground utilities;

SECTION 3. Tennessee Code Annotated, Section 65-31-106(a)(1), is amended by deleting "fifteen (15) calendar days" and substituting "twenty (20) calendar days", and by deleting "fifteenth calendar day" and substituting "twentieth calendar day".

SECTION 4. Tennessee Code Annotated, Section 65-31-106(b), is amended by deleting subdivisions (1), (2), (3), and (4), and by deleting "electric white lining, unless:" and substituting:

electric white lining, unless the person responsible for the excavation or demolition and all operators with underground facilities in the proposed area of excavation have had a meeting prior to the beginning of the excavation or demolition for the exchange of information on the location of the proposed excavation or demolition.

SECTION 5. Tennessee Code Annotated, Section 65-31-106(e), is amended by adding the following as a new subdivision:

(3) The use of vacuum excavation by or on behalf of a member operator for locating or protecting the member operator's underground facilities once notified in accordance with the requirements of this section.

SECTION 6. Tennessee Code Annotated, Section 65-31-118(b)(1)(B), is amended by deleting "area, or other facility records" and substituting "area, digital locating, or other facility records".

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.